Research Summary Report

To: Joe Martinez, Esq.

From: Victoria Lee, Paralegal

Date: 4/15/2024

Re: Woodward Grandparent Visitation Case

Part A.

3. The issue pertains to whether a grandparent can sue for visitation rights after the child's parent refuses contact. Under the Maryland statute GVS of Family Law § 9-102, it considers if a grandparental visitation is in the child's best interests. Additionally, it further considers the caretaker's parental unfitness conditions and exceptional circumstances such as a refusal to visit the child. Here, the court will use this opinion to consider if Felix's restriction of grandparent visitation is in Charlie's best interests. This opinion balances parental rights and child welfare as Felix is competent and fit. It will also consider Grandmother's past behavior such as the heated argument, harm to the child, or caretaking length to be considered an exceptional circumstance. If the grandmother shows exceptional circumstances and no harm that are detrimental to Charlie, the court may order visitation. Therefore, this opinion is relevant for concluding grandparent visitation rights and limits.

4. "Whether GVS under substantive due process analysis, accorded the propriety of a parent's determination with respect to visitation with a grandparent . . . [And] whether a threshold finding of either parental unfitness or exceptional circumstances counseling in favor of grandparent visitation before a court determines what is in a child's best interests."

Part B.

8. The issue pertains to whether a grandparent can sue for visitation rights after the child's parent refuses contact. Under the Supreme court, implies a petition may be granted for visitation rights based on parental autonomy, third-party claims, and constitutional rights. Here, the court further analyses exceptional circumstances due to refusal of contact and parental unfitness of the caretaker. The opinion implies parents or caretakers have the right to make decisions depending on the state and that it serves Charlie's best interest. Moreover, grandmother has taken care of Charlie for four years in which the court will consider who is the caretaker and the de facto parental rights. If the grandmother shows that Charlie is under her parental care instead of Felix and no harm done to Charlie, the court may order visitation. Therefore, this opinion is relevant for concluding grandparent visitation rights based on caretaker priority and parental rights.

9. "[G]rant such [petition] for visitation . . . serve the best interest of the child . . . . [S]tatutes . . .varies from State to State, that children . . . benefit from relationships with statutorily specified persons . . . . [D]ue Process Clause of the Fourteenth Amendment protects . . . parents to make decisions concerning the care, custody, and control of their children . . . . [F]ind [evidence]."

Part C.

11. The opinion of *Koshko v. Haining, 921 A.2d 171 (Md. Ct. App. 2007)* is not mandatory. It is a state case of the Maryland Court of Special Appeals and is not a binding precedent to the Maryland circuit court for Frederick County, Maryland. Based on the hierarchy, the Maryland Court of Special Appeals is the intermediate appellate court and the decisions do not bind on the circuit courts. This case provides additional analysis with the GVS, exceptional condition, and parental unfitness to consider the actions done which are under state laws. It provides insight as a precedent case and the authority depends on the hierarchy. Under the court, this persuasive opinion will be considered approved sufficient evidence to grant visitation rights based on what is best for Charlie. Additionally, this discusses balancing parental rights and child welfare in what is in the child's best interests through GVS Md. Code Ann., Fam. Law § 9-102. Here, the state court will also weigh in with other Maryland laws to consider the grandmother's past behaviors such as heated arguments or harm to the child to be considered an exceptional circumstance. An opinion that is within the circuit court will consider this case to help verdict if the suing is legal and the court may follow it but not strictly bound to it. Therefore, the opinion of *Koshko v. Haining* is persuasive and relevant to the Maryland circuit court for Frederick County, Maryland.

12. The opinion of *Troxel v. Granville, 530 U.S. 57 (2000)* is not mandatory as federal and state courts are different. It is a supreme court case revolving on a constitutional issue regarding the fourteen amendments for parental rights and it is the highest court in the federal system. Meanwhile, the Circuit Court for Fredrick County deals with Maryland state laws. This implicates that the federal and state courts are independent from one another. Since the decision was by the supreme court and the issue that the grandmother filed is in a state law, it has persuasive authority, providing insight and not bindings to the state courts. Moreover, it interprets from the state's highest court and is not binding to the Maryland circuit court for Frederick County, Maryland. Under the Supreme court, implies a petition may be granted for visitation rights based on parental autonomy, third-party claims, and constitutional rights. Here, the court further analyses exceptional circumstances due to refusal of contact and parental unfitness of the caretaker. This correlates to the grandmother as mostly the caretaker instead of the parent Felix but prioritize parental rights for considering grandparent visitation. The supreme court opinion implies parents or caretakers have the right to make decisions depending on the state and that it serves Charlie's best interest. Since it is very broad, it will weigh alongside other Maryland legal principles to consider the parental rights of grandparent visitation while ensuring constitutional and parental rights. Therefore, the opinion of *Troxel v. Granville* is persuasive and relevant to the Maryland circuit court for Frederick County, Maryland.

References

Koshko v. Haining, 921 A.2d 171 (Md. Ct. App. 2007)

Md. Code Ann., Fam. Law § 9-102

Troxel v. Granville, 530 U.S. 57 (2000)

U.S. Const. amend. XIV